ponement of effective date have been omitted in the issuance of the following amendment of this part, which relates solely to grants to States, political subdivisions and public or other nonprofit agencies for the construction of public and other nonprofit hospitals and medical facilities.

Paragraph (a) of § 53.12 is amended to read as follows:

§ 53.12 Distribution.

(a) The construction program under the State plan shall provide for the distribution of beds, within the allowances set forth in § 53.11, by one of the following methods:

(1) General hospital beds shall be distributed to the different areas of the State in such numbers as will meet the needs of each area, except that the number of beds allocated to any area shall not be less than 1.5 beds (existing and proposed) per thousand population. Nursing home beds and chronic disease hospital beds shall be distributed to the different areas of the State in such numbers as will meet the needs of each area for such beds, except that the total number of nursing home and chronic disease beds so allocated shall not be less than 1 bed (existing and proposed) per thousand population. If the State agency does not allocate all beds required under § 53.11 to specific areas, such unallocated beds shall be held in reserve for future distribution; or

(2) General hospital, chronic disease hospital, and nursing home beds shall be distributed to the different areas of the State in such numbers and combinations as will meet the general hospital, chronic disease hospital, and nursing home bed needs of each area except that the combination of such beds allocated to any area shall not be less than 2.5 beds (existing and proposed) per thousand population. If the State agency does not allocate all beds required under § 53.11 to specific areas, such unallocated beds shall be held in reserve for future allocation.

(Sec. 215, 58 Stat. 690, as amended; 42 U.S.C. 216. Interpret or apply sec. 622, 60 Stat. 1042, sec. 653, 68 Stat. 463; 42 U.S.C. 291e, 291u)

This amendment was approved by the Federal Hospital Council on April 5, 1962, and shall become effective immediately upon publication in the FEDERAL REGISTER.

Dated: May 17, 1962.

[SEAL] ARNOLD B. KURLANDER,
Acting Surgeon General.

Approved:
LUTHER L. TERRY,
Chairman, Federal Hospital Council.

Approved: June 4, 1962.
ABRAHAM RIBICOFF,
Secretary.

[F.R. Doc. 62-5642; Filed, June 8, 1962; 8:48 a.m.]

Title 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 2690]

[Nevada 051740]

NEVADA

Revoking Executive Order No. 7435 of August 19, 1936

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U.S.C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Executive Order No. 7435 of August 19, 1936, as amended by Proclamation No. 2416 of July 25, 1940, withdrawing the public lands within the following described area, together with all lands of the United States within the meander line of Winnemucca Lake and east of the eastern boundary of the Pyramid Lake Indian Reservation, for use as a refuge and breeding ground for migratory birds, and other wildlife, as the Winnemucca National Wildlife Refuge, is hereby revoked:

MOUNT DIABLO MERIDIAN

Tps. 24 and 25, N., R. 23 E.,
All east of the Pyramid Lake Indian Reservation.
T. 27 N., R. 23 E.,
Secs. 2, 11, and 14;
Secs. 15, 22, and 23, all east of the Pyramid Lake Indian Reservation.
T. 28 N., R. 23 E.,
Sec. 12, lots 3 to 6, incl., NE¼SW¼, SW¼SW¼, and NW¼SE¼;
Sec. 13;
Sec. 14, lot 1, NE¼SE¼, and SW¼SE¼;
Sec. 23, lots 1 to 4, incl., and NE¼SW¼;
Sec. 26;
Sec. 35, lots 1, 2, 4, and 5, E½NW¼, and NE¼SW¼.
T. 24 N., R. 24 E.,
Sec. 4, W½W½;
Secs. 5 and 8;
Sec. 9, W½W½;
Sec. 16, W½W½;
Secs. 17 and 19;
Sec. 20, lots 1 and 2, SE¼NW¼, and N½SW¼;
Sec. 30.
T. 25 N., R. 24 E.,
Sec. 5, lots 2 to 6, incl., SW¼NE¼, and W½SE¼;
Sec. 8, lots 1 to 4, incl., W½NE¼, NE¼SW¼, and W½SE¼;
Sec. 17, lots 1 to 4, incl., NW¼NE¼, S½NE¼, and E½SE¼;
Sec. 20;
Sec. 21, W½W½;
Sec. 28, W½W½;
Secs. 29 and 32;
Sec. 33, W½W½.
T. 26 N., R. 24 E.,
Sec. 4, lots 3 and 4;
Sec. 5, lots 1 to 4, incl.;
Sec. 7, lot 1;
Sec. 8, lots 1 to 4, incl., and E½SW¼;
Sec. 17, lots 1, 2, and 3, N½NW¼, and SE¼NW¼;
Sec. 18;
Sec. 20, lots 1 to 4, incl.;
Sec. 29, lots 1 to 4, incl.;
Sec. 32, lots 1 to 5, incl., and NE¼SE¼.
T. 27 N., R. 24 E.,
Sec. 4, lots 3 to 6, incl.;
Secs. 5 and 8;
Sec. 16, lots 1, 2, and 3;
Secs. 17 and 21;
Sec. 22, lots 1, 2, and 3;
Sec. 27, lots 1 to 4, incl.;
Sec. 33, lots 1 and 2;
Sec. 34, lots 1 and 2.
T. 28 N., R. 24 E.,
Sec. 16, lots 1 and 2;
Sec. 17, lots 1 to 4, incl.;
Sec. 18;
Sec. 21, lots 1 to 4, incl.;
Sec. 28, lots 1 to 4, incl.;
Sec. 33, lots 1 to 4, incl.

The areas described aggregate approximately 65,444 acres.

2. The refuge was originally established for the protection of water fowl. The lands have been dry for several years, and no longer serve the purpose for which they were set aside. Most of the land is withdrawn for Reclamation purposes in connection with the Newlands Project.

3. The public lands released from withdrawal by this order are hereby restored to the operation of the public land laws, effective at 10:00 a.m. on July 11, 1962, subject to any valid existing rights, the requirements of applicable law, rules and regulations, and the provisions of any existing withdrawals.

4. The public lands outside of the area withdrawn for reclamation purposes have been open to applications and offers under the mineral leasing laws and to location for metalliferous minerals. They will be open to location for nonmetalliferous minerals beginning at 10:00 a.m. on July 11, 1962.

Inquiries concerning the lands should be addressed to the Manager, Land Office, Bureau of Land Management, Reno, Nevada.

JOHN A. CARVER, JR.,
Assistant Secretary of the Interior.

JUNE 5, 1962.

[F.R. Doc. 62-5631; Filed, June 8, 1962; 8:46 a.m.]

Title 46—SHIPPING

Chapter IV—Federal Maritime Commission

SUBCHAPTER B—REGULATIONS AFFECTING MARITIME CARRIERS AND RELATED ACTIVITIES

PART 530—INTERPRETATIONS AND STATEMENTS OF POLICY

Interpretation of Shipping Act, 1916

Pursuant to section 43 of the Shipping Act, 1916 (46 U.S.C. 842), and section 3(a)(3) of the Administrative Procedure Act (5 U.S.C. 1002(a)(3)), the Commission hereby amends § 530.3 *Further interpretation of Shipping Act, 1916,* to read as follows:

§ 530.3 Further interpretation of Shipping Act, 1916.

(a) Section 3 of Public Law 87-346 provides as follows:

SEC. 3. Notwithstanding the provisions of sections 14, 14b, and 15, Shipping Act, 1916,

as amended by this Act, all existing agreements which are lawful under the Shipping Act, 1916, immediately prior to enactment of this Act, shall remain lawful unless disapproved, canceled, or modified by the Commission pursuant to the provisions of the Shipping Act, 1916, as amended by this Act: *Provided, however,* That all such existing agreements which are rendered unlawful by the provisions of such Act as hereby amended must be amended to comply with the provisions of such Act as hereby amended, and if such amendments are filed for approval within six months after the enactment of this Act, such agreements so amended shall be lawful for a further period of not to exceed one year after such filing. Within such year the Commission shall approve, disapprove, cancel or modify all such agreements and amendments in accordance with the provisions of this Act.

(b) The Federal Maritime Commission interprets such section and section 14b of the Shipping Act, 1916, as prohibiting a carrier or conference of carriers from denying contract rates for a period of one year after it has filed an amended contract rate agreement pursuant to section 3 of Public Law 87–346, or until such amended contract rate agreement has been approved, disapproved, canceled or modified by the Federal Maritime Commission, whichever first occurs, to a contract shipper who on April 2, 1962, was a party to a lawful contract rate agreement and who prior to April 3, 1962, or prior to the date of first shipment in the trade covered by the contract after April 2, 1962, advises said conference in writing or by telegram that he agrees to be bound by said contract rate agreement amended to the extent necessary to comply with the provisions of section 14b of the Shipping Act, 1916; *Provided,* That the conference has filed with the Federal Maritime Commission a proposed form of contract pursuant to section 3 of Public Law 87–346. Unless the conference has filed such a proposed form of contract, the use of any contract system will be unlawful.

(c) Furthermore, on and after April 3, 1962, the provisions of any contract rate agreement which has been modified in order to comply with the proviso clause of section 3 of Public Law 87–346 are lawful and enforceable as between the parties only to the extent that such provisions (1) were lawful on April 2, 1962, and are not inconsistent with the requirements of section 14b of the Shipping Act, 1916, or (2) are required to make said contract rate agreement comply with section 14b of the Shipping Act, 1916. Any other provision of any such contract rate agreement is unlawful and may not be applied or enforced directly or indirectly, until such provision has been approved by the Commission. If any such contract rate agreement, on and after April 3, 1962, does not contain provisions required by section 14b, such contract rate agreement shall be applied or enforced as if it contained all provisions required by section 14b.

By the Commission.

THOMAS LISI,
Secretary.

JUNE 5, 1962.

[F.R. Doc. 62–5657; Filed, June 8, 1962; 8:50 a.m.]

Title 50—WILDLIFE AND FISHERIES

Chapter I—Bureau of Sport Fisheries and Wildlife, Fish and Wildlife Service, Department of the Interior

SUBCHAPTER B—HUNTING AND POSSESSION OF WILDLIFE

PART 10—MIGRATORY BIRDS

Miscellaneous Amendments

By Notice of Proposed Rule Making published in the FEDERAL REGISTER on May 1, 1962 (27 F.R. 4153), notification was given that the Secretary of the Interior proposed to amend Part 10, Title 50, Code of Federal Regulations. These amendments specify open seasons, certain closed seasons, shooting hours, bag and possession limits, hunting methods, and possession, transportation, and importation controls for migratory game birds.

In this connection the public was notified that certain specific amendments to Part 10 concerning hunting methods and possession, transportation, and importation controls were being proposed for immediate consideration. These specific amendments constitute a revision of existing regulations for clarification purposes and do not reflect any significant departure from the intent, purpose, or effect of the existing regulations. The text of these specific amendments was set forth in detail and interested persons were invited to submit their written views on these specific proposals to the Director, Bureau of Sport Fisheries and Wildlife, within 30 days of the date of publication in the FEDERAL REGISTER.

The public was also notified that amendments to Part 10 which would prescribe open seasons, bag and possession limits, and shooting hours for doves and pigeons in Puerto Rico and the Virgin Islands would be proposed for adoption on or about June 1, 1962, and interested persons were invited to submit their views, data, or recommendations regarding these matters prior to June 1.

Accordingly, after giving due consideration to the comments received within the 30-day period and to all other relevant matters presented, the specific amendments proposed are adopted without change as set forth below, and open seasons, bag and possession limits, and shooting hours for doves and pigeons in Puerto Rico and the Virgin Islands are adopted as set forth below.

The taking of doves and pigeons in Puerto Rico and the Virgin Islands is presently prohibited. These amendments will permit the taking of these species within designated periods of time beginning as early as July 1, 1962. Since these amendments benefit the public by relieving existing restrictions and serve to clarify existing regulations, they shall become effective upon publication in the FEDERAL REGISTER.

1. Paragraphs (c) and (h) of § 10.2 are amended to read as follows:

§ 10.2 Definition of terms.

* * * * *

(c) *Take.* Pursue, hunt, shoot, capture, collect, kill, trap, or attempt to pursue, hunt, shoot, capture, collect, kill, or trap.

* * * * *

(h) *Sinkbox.* A raft or any type of low floating device having a depression which affords the hunter a means of concealing himself below the surface of the water.

2. Subparagraphs (2) and (3) of paragraph (a), and subparagraphs (4) and (8) of paragraph (b) of § 10.3 are amended to read as follows:

§ 10.3 Hunting methods.

* * * * *

(a) *Permitted methods.* Migratory game birds may be taken only:

* * * * *

(2) In the open or from a blind or other place of concealment (except a sinkbox) on land or water;

(3) From any floating craft except a sinkbox, and excluding any boat or other craft having a motor attached or any sailboat unless such boat or other craft with motor attached or such sailboat is beached, resting at anchor, or fastened within or tied immediately alongside of any type of fixed hunting blind: *Provided,* That rails (but not including coots or gallinules) may be taken from a boat with motor attached when (i) the source of power has been completely shut off; (ii) the forward progress of the boat due to the automotive power has ceased; and (iii) the boat is immobile or is being propelled by paddle, oars, or pole;

* * * * *

(b) *Prohibited methods.* Migratory game birds may not be taken:

* * * * *

(4) From or by means of any boat or other craft having a motor attached or any sailboat unless such boat or other craft with motor attached or such sailboat is beached, resting at anchor, or fastened within or tied immediately alongside of any type of fixed hunting blind, or is used solely as a means of picking up dead or injured birds;

* * * * *

(8) By means or aid of any motor-driven land, water, or air conveyance or any sailboat used for the purpose of or resulting in the concentrating, driving, rallying, or stirring up of waterfowl, coots, or cranes; or

3. Paragraph (b) of § 10.4 is amended to read as follows:

§ 10.4 Open seasons, limits, and other provisions.

* * * * *

(b) No person may take in any one day more than the daily bag limit or aggregate daily bag limit, whichever applies. No person may possess more birds lawfully taken in the United States than the possession limit or the aggregate possession limit, whichever applies. No person on the opening day of the season